

合法利用 AI 進行藝術創作

v.20260816

群牧開源管理顧問有限公司 / 鈞理知識產權事務所 法制顧問

CC Taiwan Chapter Lead / CC 台灣計畫主持人

Legal Adviser @ Herding Open Source Management Consultants Ltd. & Gemly Int' l IPR Office

林誠夏 / Lucien Cheng-hsia Lin Email: lucien.cc@gmail.com

LinkedIn: <https://tw.linkedin.com/in/lucienchlin>

2026 臺北生成藝術節 賽前工作坊 2026.08.29

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lucien.cc@gmail.com

林誠夏 / Lucien C.H. Lin

本職：

- 1、**群牧**開源管理顧問有限公司 / **鈞理**知識產權事務所 法制顧問
- 2、**CC Taiwan Chapter Lead**、台灣開源法律網絡 共同創辦人
- 3、究心公益股份有限公司獨立董事

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- 1、行政院、國發會、文化部、故宮博物院、考試院、銓敘部政府資料開放諮詢小組會議委員
- 2、臺北市政府公共參與組**市政顧問**

<http://tw.linkedin.com/in/lucienchlin>

創意解放與權利保護的角度

淺探生成式 AI 與藝術創作的正確認知及

生成藝術節的競賽規則與 CC 應用

大綱

- 01 | 對 AI 工具的**合法應用**
- 02 | 什麼是 **CC 授權**？能吃嗎？
- 03 | 對 AI 產出的作品進行**適當標示**

在談**合法應用**之前、先說說
有**非法使用 AI**的**爭議**嗎？



<https://chatgptiseatingtheworld.com/aicopyrightcasetracker/>



<https://chatgptiseatingtheworld.com/aicopyrightcasetracker/>

Homepage x +

← → ↻ 🏠 www.anthropiccopyrightsettlement.com 🌐 ☆ 😊 📄 ☰

Bartz, et al. v. Anthropic PBC | **Bartz v Anthropic** | 3:24-cv-5417

Home Key Dates Important Documents FAQ Works List Lookup Learn About Your Four Options and Due Dates 🌐 English ▼



Welcome to the Anthropic Copyright Settlement Website

You may be a Class Member if you are the legal or beneficial copyright owner of a book included in the Anthropic Copyright Settlement.

<https://www.anthropiccopyrightsettlement.com/>

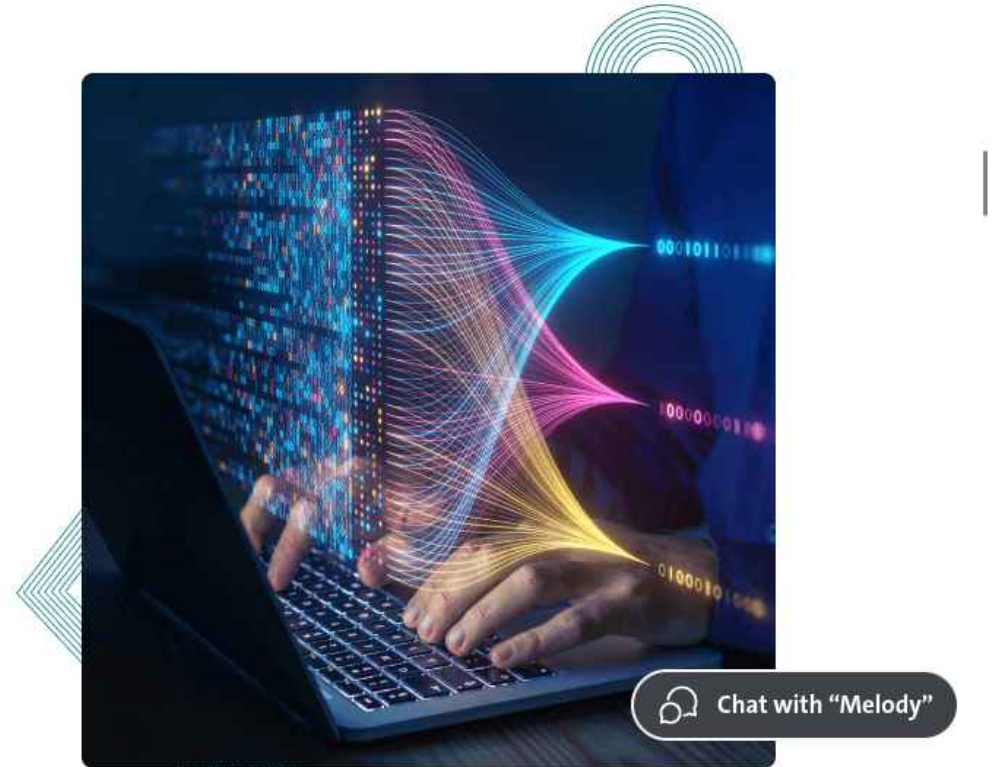
REVIEW 2024

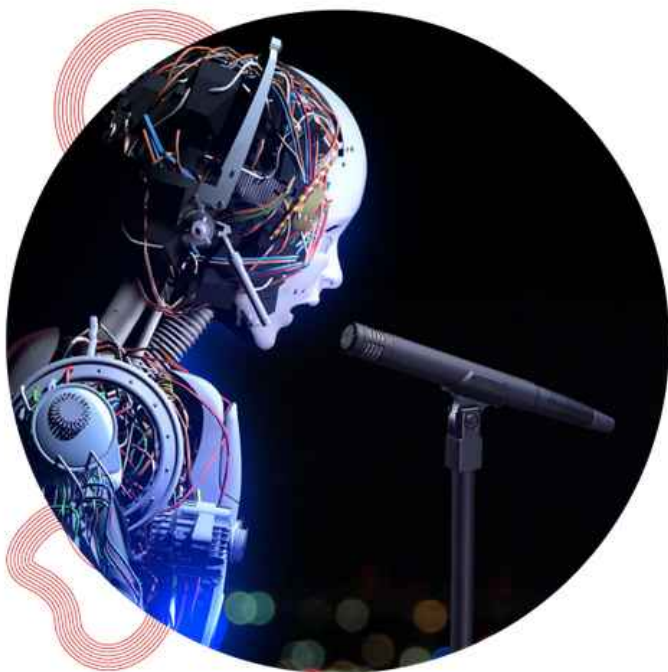
GEMA sues Open AI

OpenAI has become the world's leading provider in the field of generative AI and now boasts annual sales over two billion dollars. In 2024, the company is aiming for sales of up to five billion dollars. Its AI-supported language system or chatbot, ChatGPT, was trained with copyrighted texts, including song lyrics from the repertoire of around 100,000 GEMA members. These authors have not yet been paid for the use of their works.

GEMA therefore filed a lawsuit against the American parent company, OpenAI, LLC, and against OpenAI Ireland Ltd., the chatbot's operator in Europe. The lawsuit's subject is the chatbot's unlicensed reproduction of song lyrics. When simple prompts are entered, the chatbot reproduces the original song lyrics with which the system has obviously been trained.

→ [Press release \(13 November 2024\)](#)





NOVEMBER 2025

First AI policy case in Europe

The oral proceedings in the court case brought by GEMA against AI provider OpenAI before the Munich Regional Court attracted a great deal of attention. This is the first court case of this magnitude in Europe to deal with fundamental questions regarding the use of copyright-protected works by providers of generative AI systems. The proceedings made it clear that processes in AI systems are also relevant to copyright law.

[→ Press release \(29 September 2025\)](#)[→ Press release \(11 November 2025\)](#)

Chat with "Melody"

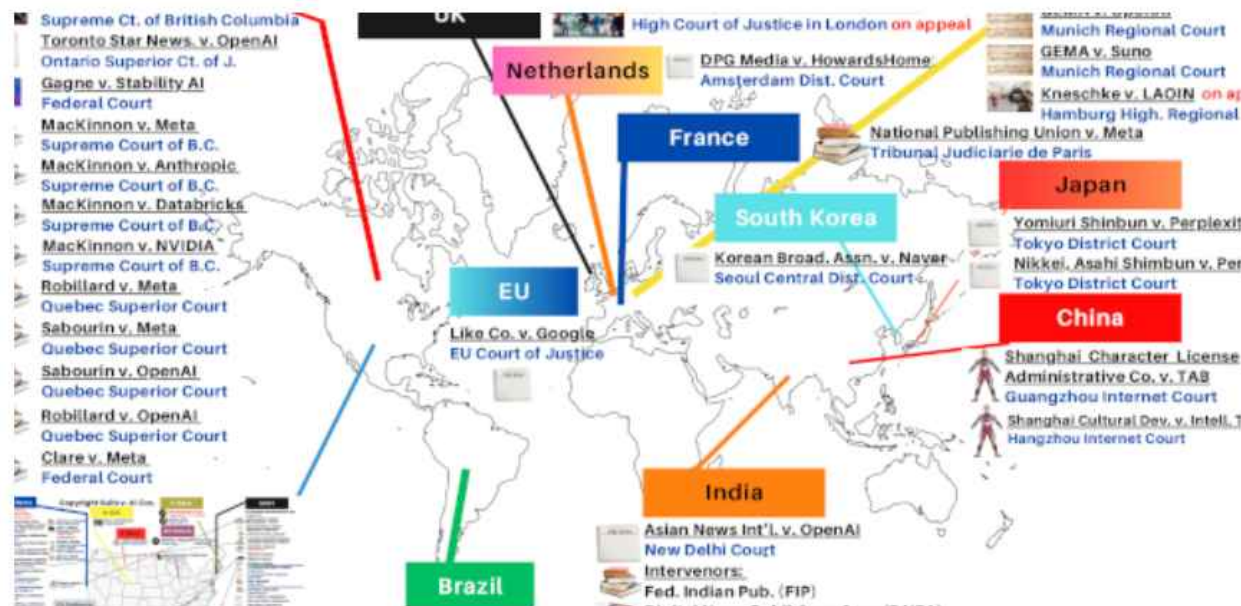
01 | 對 AI 工具的合法應用

- 從**著作權**的觀點

從著作權觀點看一般使用者對AI工具的合法應用

2026年3月2日 | Written by Librarian017

Leave a Comment



林誠夏顧問/CC Taiwan、鈞理知識產權事務所

分類

學術論文@線上講堂

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電子報

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智慧財產權

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經濟 | 統計

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醫學 | 養生

易經 | 數術

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建築 | 設計

科普 | 科技

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哲學 | 文學

藝術 | 音樂

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教育 | 人文

著作權 Copyright

是保護**創作表達成果**的法律

著作權是如何產生和歸屬的？

人為的獨特創意表達產生著作，就可以產生著作權！而基本上依著作權法的預設，創意由誰而生，該人便為該著作之著作人，享有其著作財產權與著作人格權。

著作權保護

客體很廣

語言 音樂 戲劇 舞蹈

美術 攝影 圖形 視聽

錄音 建築 電腦程式

其他

只要是人類的精神創作

詩、詞、書、畫

影音、多媒體

眼耳感知

五官欣賞

創作保護主義

作品於創作完成時自動取得著作權

利相關保護、毋須登記、毋須申請

著作權法第 10 條 著作人於著作完成時享有著作權。但本法另有規定者，從其規定。

<http://law.moj.gov.tw/LawClass/LawSingle.aspx?Pcode=J0070017&FLNO=10>

但是要得到著作權保護

必須是人類的精神創作

Monkey selfie copyright dispute

https://en.wikipedia.org/wiki/Monkey_selfie_copyright_dispute

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WIKIPEDIA
The Free Encyclopedia

Main page
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Featured content
Current events
Random article
Donate to Wikipedia
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Interaction

Help
About Wikipedia
Community portal
Recent changes
Contact page

Tools
What links here
Related changes
Upload file
Special pages
Permanent link
Page information
Wikidata item
Cite this page

WIKIPEDIA ASIAN MONTH

This November is the Wikipedia Asian Month. [Come join us.](#)

Monkey selfie copyright dispute

From Wikipedia, the free encyclopedia

The **monkey selfie copyright dispute** is a series of disputes about the copyright status of *selfies* taken by *Celebes crested macaques* using equipment belonging to the British nature photographer David Slater. The disputes involve *Wikimedia Commons*, which has hosted the images over Slater's objections, and *People for the Ethical Treatment of Animals* (PETA), who have argued that the macaque should be assigned the copyright.

Slater has argued that he has a valid copyright claim based on the fact that he engineered the situation that resulted in the pictures, by travelling to Indonesia, befriending a group of wild macaques, and setting up his camera equipment in such a way that a "selfie" picture might come about. The *Wikimedia Foundation's* 2014 refusal to remove the pictures from its Wikimedia Commons image library was based on the understanding that copyright is held by the creator, that a non-human creator (not being a *legal person*) cannot hold copyright, and that the images are thus in the *public domain*. In December 2014, the *United States Copyright Office* stated that *works created by a non-human*, such as a photograph taken by a monkey, are not *copyrightable*. A number of legal experts in the US and UK have nevertheless argued that Slater's role in the process that led to the pictures being taken may have been sufficient to establish a valid copyright claim, stating that this is a decision that would have to be made by a court.^{[1][2][3]}

In a separate dispute PETA has tried to use the monkey selfies to establish a legal precedent that animals can be declared copyright holders. Slater had published a book containing the photographs through self-publishing company *Blurb, Inc.* In September 2015, PETA filed a lawsuit against Slater and Blurb, requesting that the monkey be assigned copyright and that PETA be appointed to administer proceeds from the photos for the endangered species' benefit. In 2016, a judge ruled that the monkey cannot own the copyright to the images.^[4] PETA appealed, and in September 2017, all sides agreed to a settlement in which Slater will donate a portion of future revenues on the photographs to wildlife organizations.

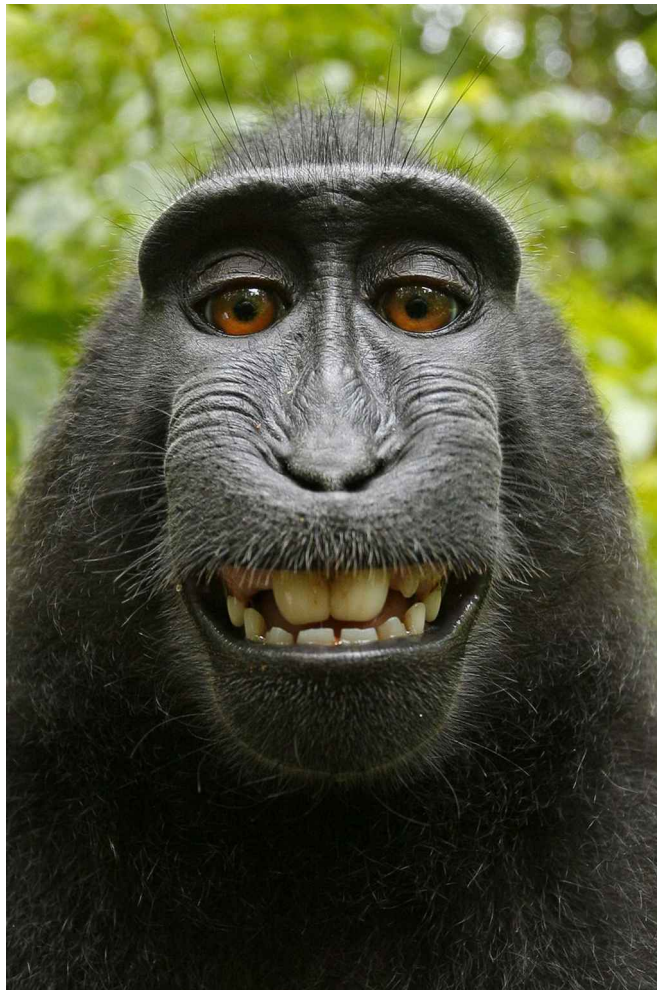


One of the monkey selfies at issue in the dispute.

Quoted under Fair Use doctrine, original attribution as:

CC BY-SA 3.0 @ wikipedia: https://en.wikipedia.org/wiki/Monkey_selfie_copyright_dispute

Public Domain for the photo at: https://en.wikipedia.org/wiki/File:Macaca_nigra_self-portrait_large.jpg



By Self-portrait by the depicted *Macaca nigra* female. See article. - Wtop.com (archive; cropped and denoised by uploader), Public Domain, <https://commons.wikimedia.org/w/index.php?curid=36464057>



Copyright does not protect content produced by Generative AI (GenAI): Thaler v Perlmutter
<https://barrysookman.com/2023/08/19/copyright-does-not-protect-content-produced-by-generative-ai-genai-with-no-human-involvement-thaler-v-perlmutter/>

動物自發的行為

AI 全自動、半自動的混搭

沒有人類精神的注入

著作權上便不受保護

人類作品的判斷指標

1. 創作理念的說明
2. 重現創作過程的能力

AI 作品要受著作權保護

人為創意在前、機器修潤在後

機器亂數產生在前、人為創意修潤在後

Human in the Loop

Human on the Loop



"Illustration of AI Colorization Following a Human Sketch" made in 2025 by Lucien C.H. Lin.
This image was generated through ChatGPT 4o under the direction and creative concept of the author, and is dedicated to the public domain under the CC0-1.0 license.

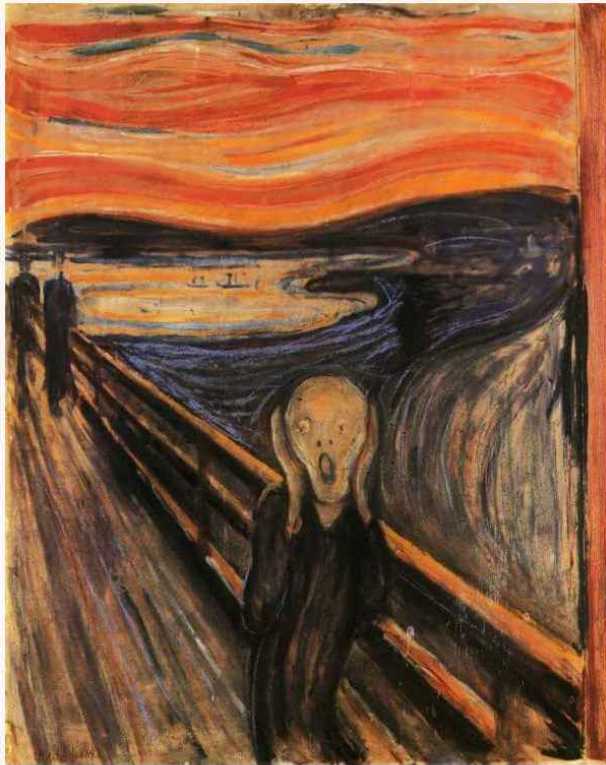


"Illustration of Human Refinement and Adaptation of an AI-Generated Work" made in 2025 by Lucien C.H. Lin.
This image was generated through ChatGPT 4o under the direction and creative concept of the author, and is dedicated to the public domain under the CC0-1.0 dedication.

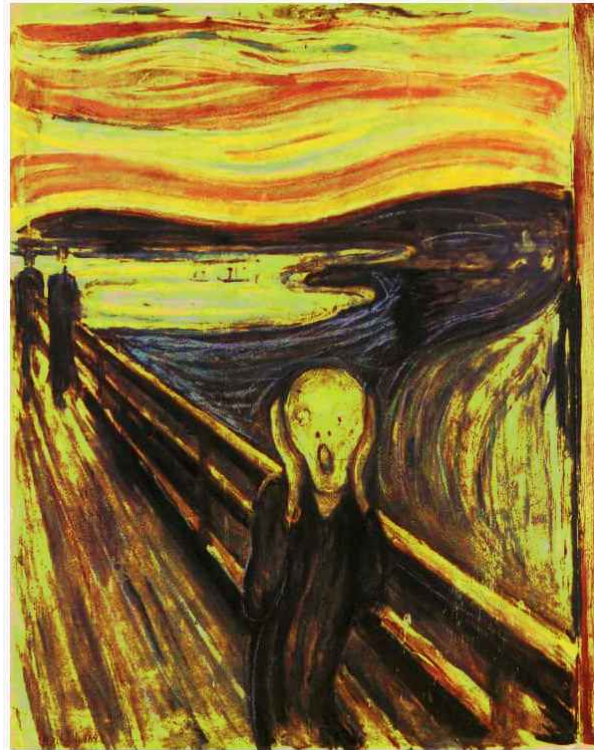
原則上、即使只是

1 %的人類創意注入

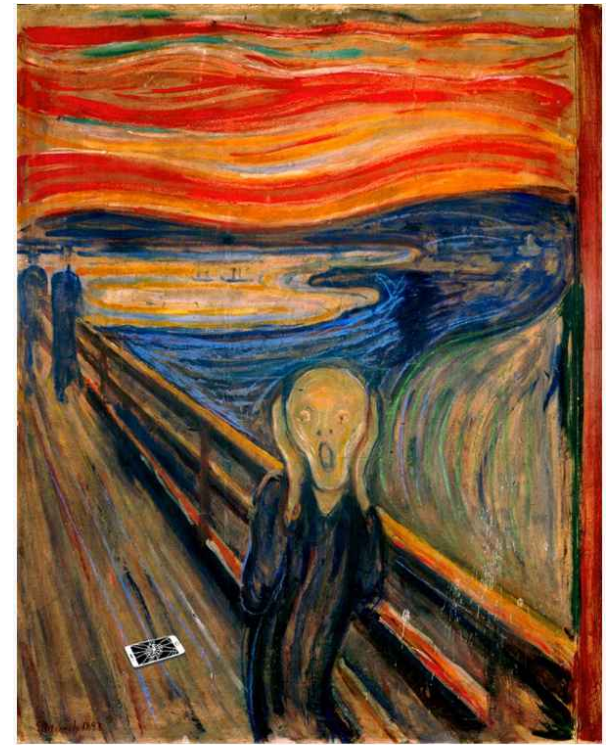
只要能達到畫龍點睛的創作奇點



The Scream, 1893 by Edvard Munch



The Scream, 1893 by Edvard Munch



Based on : The scream by Edvard Munch (1893).
ART X-SMART Project by Kim Dong-Yun, 2013.
<https://artxsmart.tumblr.com/post/56080453891/the-scream-by-edvard-munch-1893>

The ones on the left two, Public Domain at: <https://www.edvardmunch.org/>

The one on the right one, Fair Use at: <https://i.pinimg.com/originals/f1/64/32/f1643293e8ed619f41077558f64d1f05.jpg>

美學不歧視

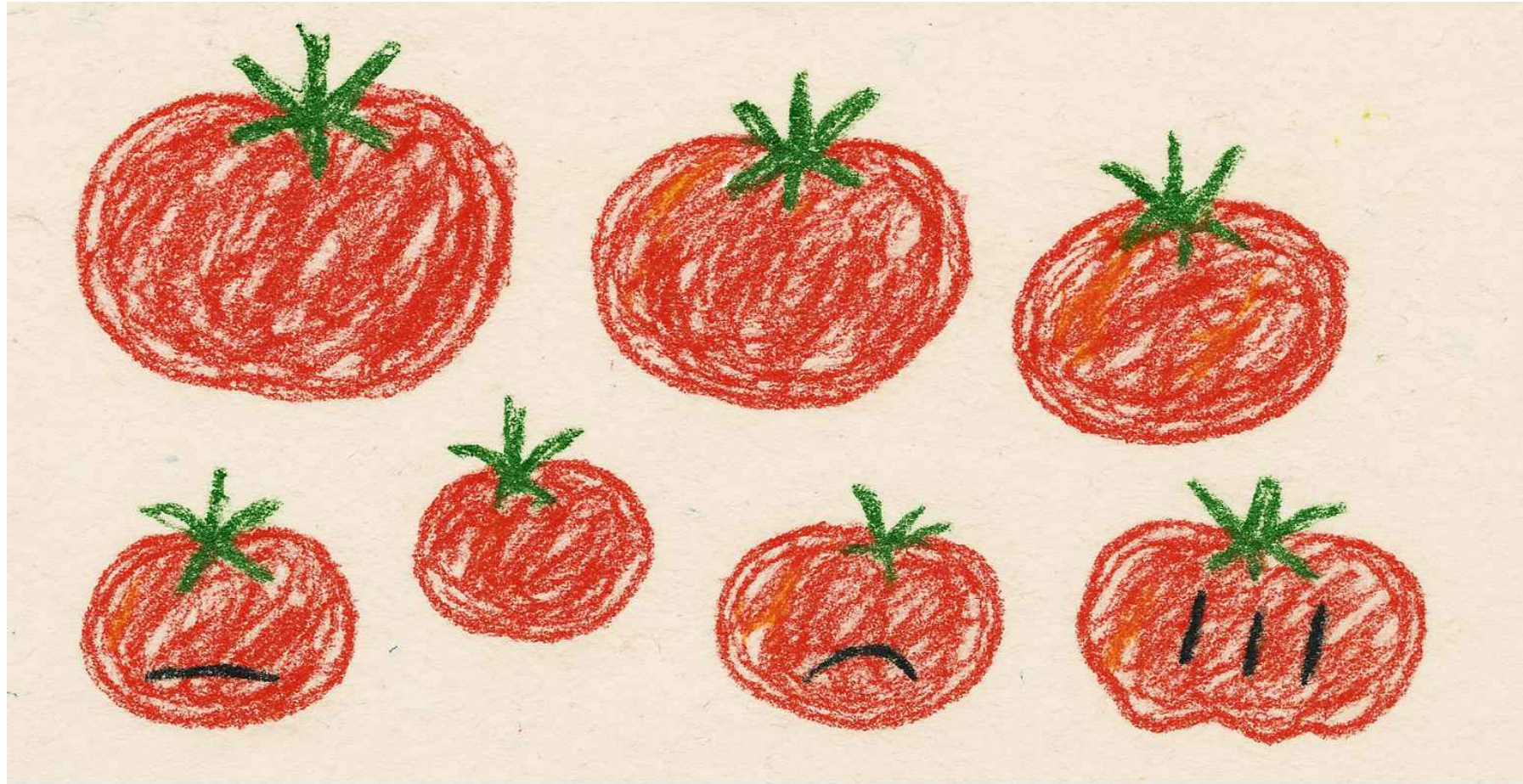
Minimal requirement of creativity

著作權適格的判斷、必須是人做的

著作權論「有 / 無」、不論「高 / 低」



Reference illustration by Lucien C.H. Lin, AI-generated with ChatGPT 4o, April 12, 2025



"Reference illustration" by Lucien C.H. Lin, AI-generated with ChatGPT 4o, CC0-1.0, April 12, 2025.

著作權保護標的

僅止於著作的表達（形式）

著作權法

並不保護「點子」！

除非您去申請專利或是把它當營業秘密！

著作權法第 10-1 條：

<http://law.moj.gov.tw/LawClass/LawSingle.aspx?Pcode=J0070017&FLNO=10-1>

著作權法第 10-1 條

依本法取得之著作權，其保護**僅及於該著作之表達**，而不及於其所表達之**思想、程序、製程、系統、操作方法、概念、原理、發現**。

17 U.S. Code § 102(b) – Subject matter of copyright: In general

In no case does **copyright protection for an original work of authorship** extend to any **idea, procedure, process, system, method of operation, concept, principle, or discovery**, regardless of the form in which it is described, explained, illustrated, or embodied in such work.

著作權框架下

重新創作 $\neq$ 抄襲改作



分享到FB



分享到g+



分享到Plurk



分享到Twitter

北捷封殺12款App 網友怒

「正版太爛 好用的卻被下架」

2013年01月16日

g+ 29



台北捷運公司要求侵權的App下架。廖祥瑞攝

【許麗珍/台北報導】台北捷運公司向手機軟體App業者開鎚，去年底以違反著作權為由，發文要求Google Play與App Store兩下載平台撤除十二款未經北捷授權的捷運網路App，截至昨日已有五款下架，並籲民眾下載北市交通局正版「台北好行」App。網友砲轟「台北好行」太爛，好用App卻被要求下架。



看蘋果

食安問題追追追

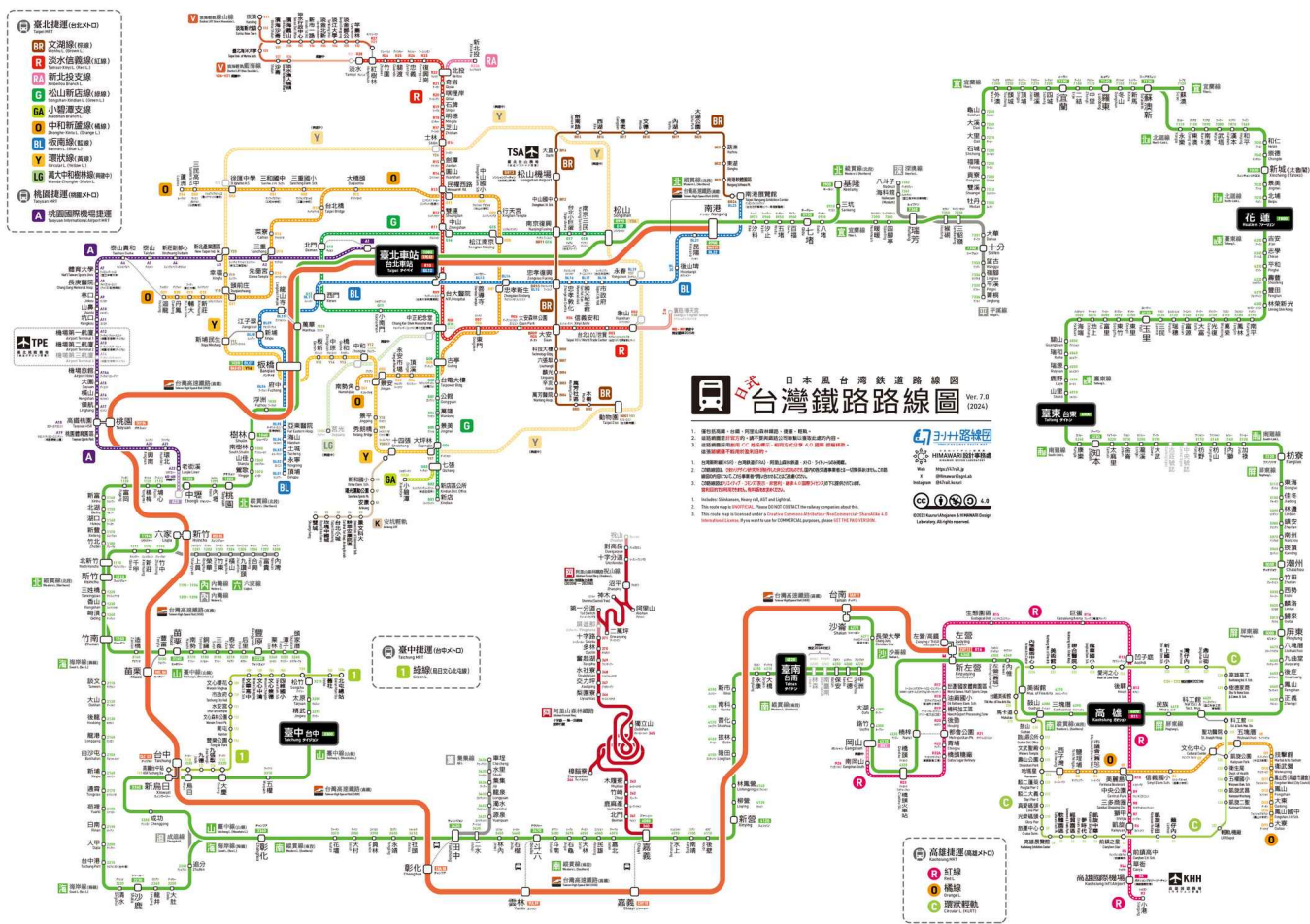
網友kenf (肯夫) 在台大PTT (telnet://ptt.cc) 貼文，指Google Play知名北捷查詢App「台北捷運地圖」遭下架，檢舉的北捷並對涉及侵權的其他同類型十一款App，向軟體商店提出檢舉，引發網友熱烈討論。



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Copyright © Taipei Rapid Transit Corporation

Fair Use at: <http://web.metro.taipei/img/all/metrotaipeimap.jpg>

Public Domain for the text at law at: <http://www.appledaily.com.tw/appledaily/article/headline/20130116/34773133/>



不論是誰、都有地位

重新畫一張自己的捷運圖

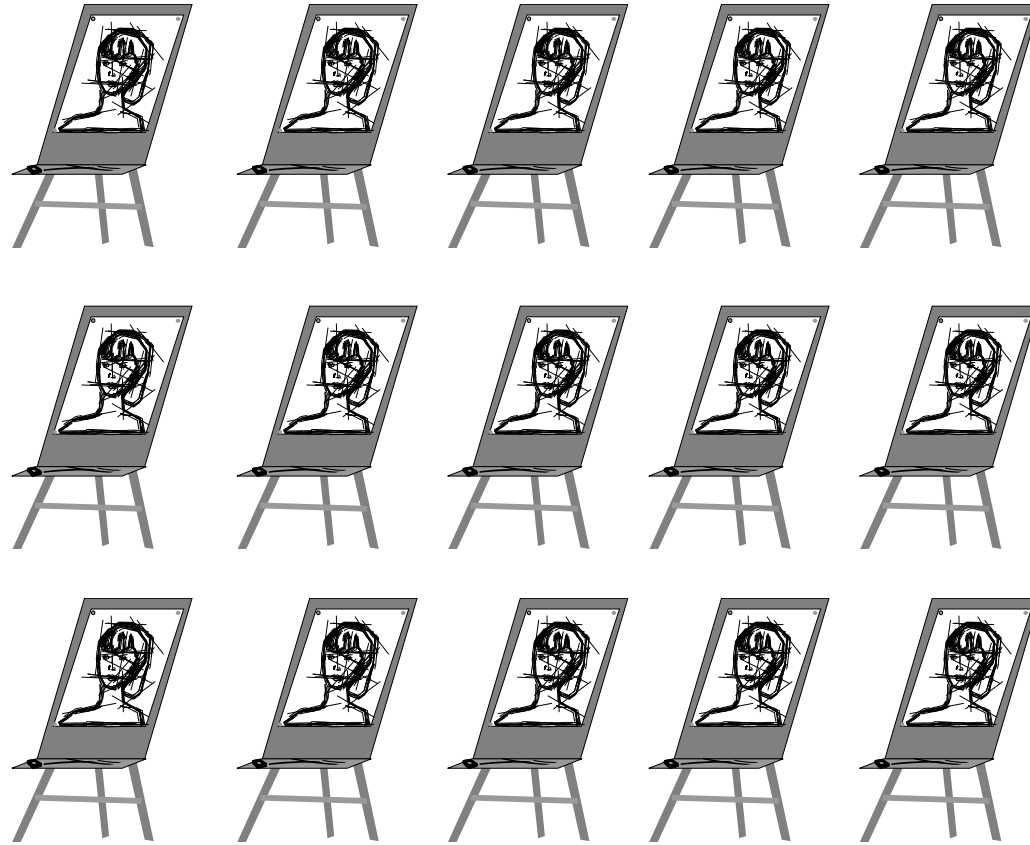
著作權法第 10-1 條：

<http://law.moj.gov.tw/LawClass/LawSingle.aspx?Pcode=J0070017&FLNO=10-1>



portrait sketch

By	OIKu
Created	2011-08-17
Description	sketching a portrait
Tags	drawing , molbert , portrait , sketch
Viewed by	2381 People
Loved by	1 People
Filesize	71002 bytes



CC0 at: <https://openclipart.org/detail/155725/portrait-sketch>

個別依**概念**、或**自然實景**重新繪圖

沒有著作權上的抄襲

抄 – 重製權、**襲** – 改作權

(1) 接觸

(2) 實質相似

最高法院 81 年台上字第 3063 號判決。

認定抄襲之要件有二，即（一）接觸，（二）實質相似。

使用 **AI 工具**模組、也請

盡量不要構成他人**著作表達形式**

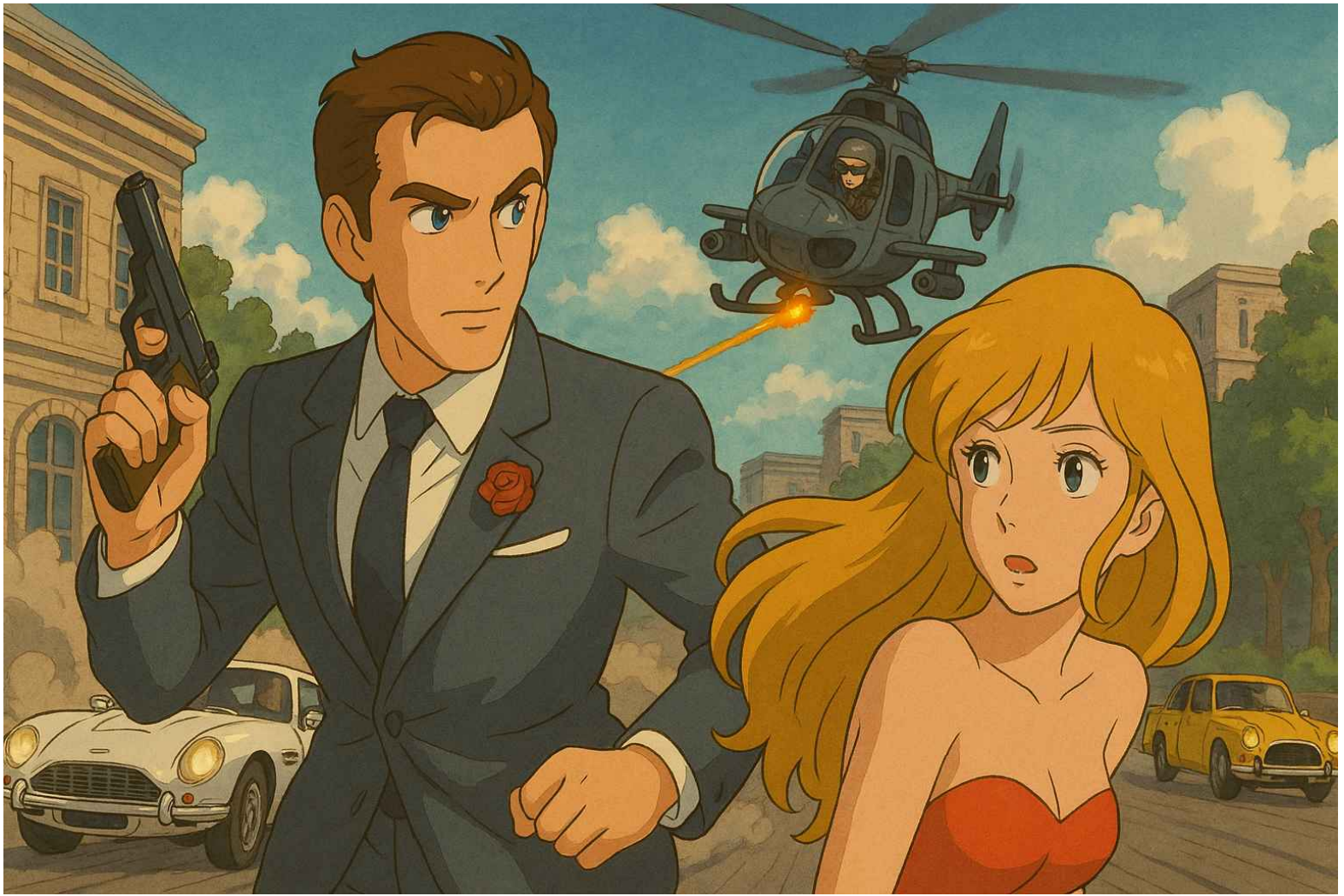
的直接**承襲**、**傳襲**！

避免產生著作表達的

實質近似 Substantial similarity

請 AI 協助條列分析該篇文章重點

- 概念、事實資訊之學習不受著作保護或限制
- 而非直接下令轉譯該篇文章、承襲其表達



Built with ChatGPT-5, dedicated to Public Domain under CC0-1.0, No Rights Reserved.

Metro-Goldwyn-Mayer, Inc. v. Am. Honda Motor Co., Inc., 900 F. Supp. 1287 (C.D. Cal. 1995)

Year	1995
Court	United States Court of Appeals for the Central District of California
Key Facts	To advertise a new convertible model with a detachable roof, defendants, Honda and its advertising firm, made a commercial featuring a fast-paced scene in which a menacing villain in a helicopter chases a suave hero and attractive heroine who are driving the new convertible model. Plaintiff MGM (Metro-Goldwyn-Mayer, Inc.) filed a motion for a preliminary injunction alleging that defendants infringed its copyrights to sixteen James Bond films as well as the James Bond character. Defendants raised the fair use defense.
Issue	Whether defendants' commercial was a parody that was protected under the fair use defense.
Holding	The court granted MGM a preliminary injunction, ruling against defendants' fair use defense. The court disagreed with defendants' assertion that the

James Bond(著作角色著作的擴展範圍)

- 1.英俊的男性英國間諜
- 2.圍繞著高科技裝備、跑車、美女
- 3.動作追逐場景為背景

著作角色的「**總體印象**」 (**total concept and feel**)

ChatGPT 5

請協助繪圖，長寬比 16:9 、 PNG 格式，採**吉卜力**風格，具備以下幾點元素：

- 1、主角為英俊的**男性英國**間諜；
- 2、圍繞著高科技**裝備、跑車、美女**；
- 3、**動作追逐**場景為背景。

高風險表述

ChatGPT 5

請協助繪圖，長寬比 16:9 、 PNG 格式，採**科技動漫**風格，具備以下幾點元素：

- 1、主角為英俊的**中性亞洲**間諜；
- 2、圍繞著高科技**裝備、跑車、美女**；
- 3、**動作追逐**場景為背景。

低風險表述→紀錄**詠唱**過程以作為佐證

AI 工具或許是中立的
實施行為才去判定合法或非法

AI 工具的**合法應用**

1. 「著作權僅保護表達，不保護**思想或概念**」
2. 選擇應用情境裡**提供邊界守護**的 AI 工具
3. 掌握合理使用的界線，並**適度標示原出處**

02 | 什麼是 CC 授權？能吃嗎？

- 不能吃、但是能用來讓你的作品流通揚名的更快！

CC 授權條款 / 放話條款

我的創作可以借你抄、給你用，但是你必須按照我預先設定的遊戲規則。



CC BY

姓名標示 / Attribution

依原作者指定或依要項標示必要的出處與**顯名聲明**



CC NC

非商業性 / Non-commercial

素材不得被用於金錢的換取或其他商業營利行為



CC ND

禁止改作 / No derivatives

作品在被利用過程中的原創^{創作}內涵不能被改變

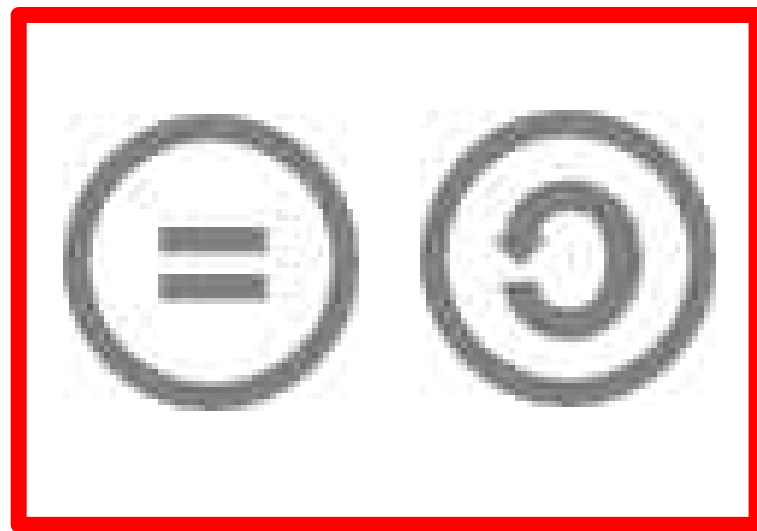


CC SA

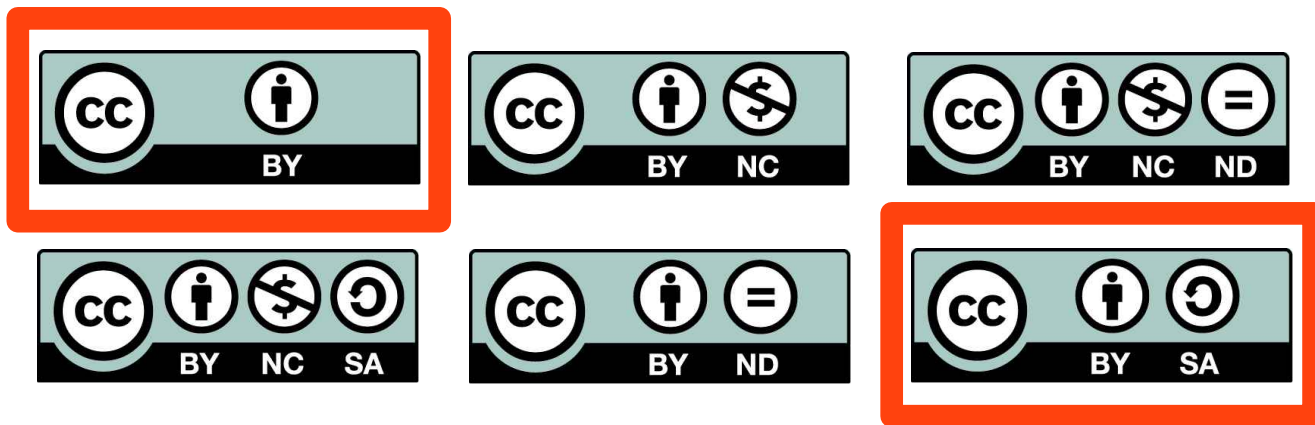
相同方式分享 / **Share alike**

不論是否改作、**後續作品都必須依完全一致的授權方
式被利用**

CC 四大元素



CC 六套組合



公眾領域標章

PDM ， **Public Domain Mark**

將不受著作權限制之作品以簡單、標準化的形式標示，使其
易於被他人發現並提供使用。

公眾領域貢獻宣告

CC0 / CC Zero / CC 零

權利人拋棄對著作的利益，以釋出到公眾領域，讓其他人可以不限任何目的地自由使用著作，從事創作、提升或再使用等行為，而不受著作權或是資料庫相關法律的限制。

不論哪一款 CC 授權或宣告

權利人都預設同意使用者可以「**重製、
散布、公開演播**」該作品！

至於能不能進一步修改或商用、看是否帶有 **ND** 和 **NC** ！



臺北生成藝術節
TAIPEI GENERATIVE ART FESTIVAL

首頁

關於生成藝術節

預熱活動

活動資訊

競賽規則

最新消息

常見問題

歷屆作品

✦ 2026 探索 AI 激發創意

臺北生成藝術節

競賽日 08.29 (六)

報名期間 即日起至 08.14

中午 12 點

演算創世 臺北覺醒

競賽規則 →

查看活動資訊



<https://genartfest.taipei/ActivityNotice/Detail/827837230456832>



「一、參賽者於競賽期間內，應依主辦單位規定之時間，於指定時間內提交作品。」

三、競賽規範：

(一)參賽者須自行準備硬體設備；另本次競賽備有AI生成工具可供選擇，參賽者亦可自行準備。

(二)生成式素材來源：參賽者使用的素材應符合《著作權法》的規定。

(三)參賽者提交作品時，即視為已確認並同意主辦機關於後續公開展示、宣傳及相關推廣使用作品時，得於作品上依統一格式標註「CR標籤（Copyright標籤）」，標明作品的著作權狀態及授權條款），其標註格式為：「《作品名稱》©參賽者姓名@2026臺北生成藝術節（genartfest.taipei），CC-BY-3.0-TW+，使用AI創作」。

(四)作品原有的AI防偽標示（使用SynthID或類似技術，明確標示圖片為AI生成內容，以防止誤解。）請予以保留，無需移除；此外，參賽者亦可自行嵌入IPTC標籤（在圖片的詮釋資料中添加IPTC標籤，包括生成工具、創作者資料和版權說明。）後提交作品。

(五)授權範圍：所有參賽作品須依報名時同意之CC-BY-3.0-TW+授權條款提交，使用方包括公眾與臺北市政府及其所屬各機關，於依循條款規範之前提下，皆得合法使用相關作品。

(六)競賽作品：無特別限制使用之AI工具／模型，允許生成結果後製處理，但生成之物件／成品／內容須為作品最主要的核心／關鍵要素。

參賽作品須依報名時同意之

CC-BY-3.0-TW+ 授權條款提交

- **BY** 姓名標示
- **TW+** 本地化及其後國際化 4.0
- **非專屬、自行運用、協助名譽性流通**

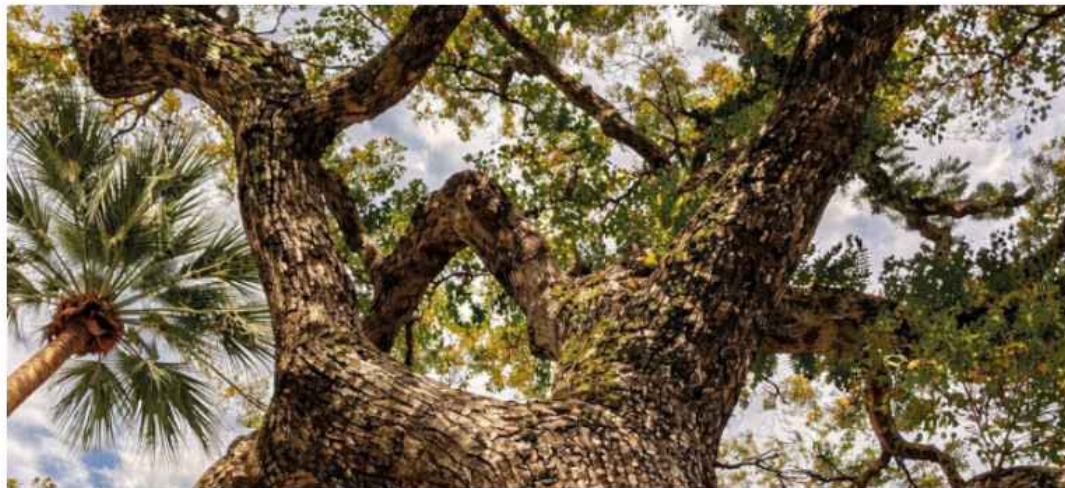
03 | 對 AI 產出的作品

進行適當標示

使用 AI 工具協助輸出的作品需要特別進行標示嗎？

2026 年 4 月 1 日 | Written by Librarian017

Leave a Comment



2026 "林誠夏 Lucien C.H. Lin" @ 逢甲大學圖書館部落格, CC0, 使用AI創作 (Made with AI - ChatGPT-4.5)。

林誠夏顧問/CC Taiwan、鈞理知識產權事務所

坦白說，這取決於具體情境。隨著生成式 AI 工具愈來愈普及，大眾對於作品標示的態度，也已從早期強調 Built with AI (由 AI 生成)、Produced by AI (由 AI 產出)，逐漸出現反向標示，例如 Built without AI (未使用 AI 生成)、Produced without AI (非 AI 產出)，甚至進一步標示 100% human-created (百分之百人類創作)。不過，在甘此特定情境下，仍建議進行明確標

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醫學 | 養生
易經 | 數術
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歷史 | 地理
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Built **with AI** (由 AI 生成)

Produced **by AI** (由 AI 產出)



Built **without AI** (未使用 AI 生成)

Produced **without AI** (非 AI 產出)

100% human-created (百分之百人類創作)

多數的 AI 平台

1. 不主張產出物著作權
2. 操作者要就拿去主張
3. 後續責任主張者自負
4. 然必須註明是 AI 產生 – Built with AI / AI tags

歐盟 EU AI ACT 的作法

Text

Document information

Procedure

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12/07/2024 

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CHAPTER IV

TRANSPARENCY OBLIGATIONS FOR PROVIDERS AND DEPLOYERS OF CERTAIN AI SYSTEMS

Article 50

Transparency obligations for providers and deployers of certain AI systems

1. Providers shall ensure that AI systems intended to interact directly with natural persons are designed and developed in such a way that the natural persons concerned are informed that they are interacting with an AI system, unless this is obvious from the point of view of a natural person who is reasonably well-informed, observant and circumspect, taking into account the circumstances and the context of use. This obligation shall not apply to AI systems authorised by law to detect, prevent, investigate or prosecute criminal offences, subject to appropriate safeguards for the rights and freedoms of third parties, unless those systems are available for the public to report a criminal offence.
2. Providers of AI systems, including general-purpose AI systems, generating synthetic audio, image, video or text content, shall ensure that the outputs of the AI system are marked in a machine-readable format and detectable as artificially generated or manipulated. Providers shall ensure their technical solutions are effective, interoperable, robust and reliable as far as this is technically feasible, taking into account the specificities and limitations of various types of content, the costs of implementation and the generally acknowledged state of the art, as may be reflected in relevant technical standards. This obligation shall not apply to the extent the AI systems perform an assistive function for standard editing or do not substantially alter the input data provided by the deployer or the semantics thereof, or where authorised by law to detect, prevent, investigate or prosecute criminal offences.
3. Deployers of an emotion recognition system or a biometric categorisation system shall inform the natural persons exposed thereto of the operation of the system, and shall process the personal data in accordance with Regulations (EU) 2016/679 and (EU) 2018/1725 and Directive (EU) 2016/680, as applicable. This obligation shall

EU Icons for labelling AI-generated content

Deployers of generative AI systems can use the EU set of icons to label certain AI-generated content, in accordance with the AI Act transparency rules.

The EU has developed a set of icons that creators, publishers and other deployers of generative AI systems may use to label their AI-generated content. These icons are freely available and an integral part of Section 2 of the [Code of Practice on marking and labelling of AI-generated content](https://digital-strategy.ec.europa.eu/en/policies/code-of-practice-on-marking-and-labelling-of-ai-generated-content).

What content needs to be labelled as AI-generated or manipulated?



What content needs to be labelled as AI-generated or manipulated?

The icons are intended to help natural persons exposed to such content to recognise, in a clear and distinguishable manner, that the content has been artificially generated or manipulated. This obligation supports public trust, reduces the risk of misinformation and the informed viewing and reading by natural persons of all sorts of content.

Not all AI-generated or manipulated content needs to be labelled. The disclosure requirement under the AI Act covers only AI-generated or manipulated content. The icons support compliance with Article 50(4) of the AI Act, which requires deployers of AI systems to disclose:

- **Deep fakes** - AI-generated or manipulated image, audio, or video content that resembles existing persons, objects, places, entities or events and would falsely appear to a person to be authentic or truthful.
- **AI-generated or manipulated text** published to inform the public on matters of public interest, which did

<https://digital-strategy.ec.europa.eu/en/policies/eu-icons-labelling-ai-generated-content>

Limitations and exceptions

Evidently **artistic, creative, satirical, fictional and analogous works**

Where deep fake content forms part of an evidently artistic, creative, satirical, fictional or analogous work or programme, the transparency obligations are limited to disclosure in an appropriate manner that does not hamper the display or enjoyment of the work.

Authorised by law

The disclosure obligation does not apply where the use of deepfakes or published text on matters of public interest is authorised by law to detect, prevent, investigate or prosecute criminal offences.

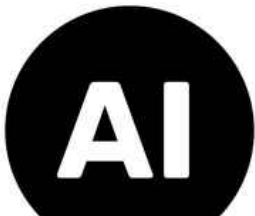
Human review or editorial control for text



The EU icons

The Icons have 4 variations: black, white, black with 50% transparency and white with 50% transparency. You can download zip files with all the icons in all variations in [SVG](#) and [PNG](#) formats.

The icons have undergone user-testing, and the results have informed their design. Notably, performance improved across all measures when the basic icon was accompanied by a text label (e.g. modified).

Icon	When to use	Use case examples
Basic icon 	When AI was involved in the creation of deep fake content (image, audio, video) or published text or when a custom text label or interactive second layer is implemented	Deep fake video with the text label "voices generated with" followed by the basic icon

Fully AI-Generated

AI GENERATED

When the entire deep fake content (image, audio, video) or text is fully generated by AI with no human-created elements or human editorial control (apart from prompting)

Fully AI-generated deep fake videos with politicians or fictional events

Fully AI-composed music or art*

AI-generated news summaries

Partially AI-Modified

AI MODIFIED

When pre-existing, human-made content was partially modified with AI turning it into a deep fake or text on matters of public interest

A face in an authentic photograph is swapped with a face of a politician using AI

Authentic photographs of an empty apartment is furnished

Lucien Cheng-hsia Lin 的貼文



Lucien Cheng-hsia Lin

1天 · 🌐

依照 EU AI Act 第 50 條 (Transparency Obligations)，有關透明度／標示義務已於 2026 年 8 月 2 日開始適用。這是 AI Act 第一波，一般企業普遍會碰到的消費者端落地規範，最近歐洲媒體稱這個標示機制，為 AI 的「Cookie Banner 時刻」。

歐盟官方設計的一組 AI Label Icons，就像一般的 Creative Commons logo，同時提供有 SVG 與 PNG 格式，可直接下載使用。

它也很簡明易用：

1. Basic icon 就標 "AI"，代表該物為 AI 生成，若涉及 deep fake 或任何容易被誤認的行為，都建議標示。
2. AI-Generated 指的是直接 AI 生成的客體。
3. AI-Modified 指的是人機互動，AI 事前事後自動調整過的客體。

<https://digital-strategy.ec.europa.eu/...../eu-icons.....>

人工智慧基本法

第 5 條

政府應避免人工智慧之應用，有侵害人民**生命、身體、自由或財產**，破壞社會秩序、國家安全或生態環境，或偏差、歧視、廣告不實、資訊誤導或造假等違反相關法規之情事。

政府應以**兒少最佳利益**為原則，人工智慧產品或系統經中央目的事業主管機關會商數位發展部認定為**高風險應用者**，應明確標示注意事項或警語。

數位發展部及其他相關機關應提供或建議評估**驗證之工具或方法**，以利各目的事業主管機關辦理前項事項。

前項驗證工具及方式之形成，應**徵詢相關利益團體、產業、學者、社會團體及法律專家之意見**。

現階段 AI 產出標示的建議原則 -v.20260804

1. **應予標示**：不揭露者可能**直接違反現行法**（例如觸及刑法、選罷法、醫師法 相關法律保留事項之 deepfaking）
2. **建議標示**：涉及**風險分擔、公平原則**的其他事項
3. **不標亦可**：然標示有助於**釐清或聲明權利**

具體標示情境的三段思考：

- 1、**AI 防偽**標示（沒必要**不需刪**）：Adobe C2PA、OpenAI DALL·E、Stability AI invisible watermark，Google Studio SynthID。
- 2、**IPTC** 標籤（專業領域**依慣例**）：International Press Telecommunications Council 影像 EXIF/XMP 欄位標示規格。
- 3、**CR** 標籤（主動**強化權利聲明**）：CR(Copyright) 標籤，泛指任何能標明作品的著作權利狀態及授權條款的相關資訊。



三、競賽規範：

(一)參賽者須自行準備硬體設備；另本次競賽備有AI生成工具可供選擇，參賽者亦可自行準備。

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(四)作品原有的AI防偽標示（使用SynthID或類似技術，明確標示圖片為AI生成內容，以防止誤解。）請予以保留，無需移除；此外，參賽者亦可自行嵌入IPTC標籤（在圖片的詮釋資料中添加IPTC標籤，包括生成工具、創作者資料和版權說明。）後提交作品。

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《作品名稱》 © 參賽者姓名 @2026 臺北生成藝術節 (genartfest.taipei) ，
CC-BY-3.0-TW+ ， 使用 AI 創作 。

- 第 80-1 條
- 1 著作權人所為之權利管理電子資訊，不得移除或變更。但有下列情形之一者，不在此限：
 - 一、因行為時之技術限制，非移除或變更著作權利管理電子資訊即不能合法利用該著作。
 - 二、錄製或傳輸系統轉換時，其轉換技術上必要之移除或變更。
 - 2 明知著作權利管理電子資訊，業經非法移除或變更者，不得散布或意圖散布而輸入或持有該著作原件或其重製物，亦不得公開播送、公開演出或公開傳輸。

- 第 90-3 條
- 1 違反第八十條之一或第八十條之二規定，致著作權人受損害者，負賠償責任。數人共同違反者，負連帶賠償責任。
 - 2 第八十四條、第八十八條之一、第八十九條之一及第九十條之一規定，於違反第八十條之一或第八十條之二規定者，準用之。

著作權法第 80-1 條：<https://law.moj.gov.tw/LawClass/LawSingle.aspx?pcode=J0070017&flno=80-1>

著作權法第 90-3 條：<https://law.moj.gov.tw/LawClass/LawSingle.aspx?pcode=J0070017&flno=90-3>

對原著作權人所設之「**權利管理電子
資訊**」，**無合法理由**進行移除或變
更，並致著作權人受損害者，**移除者
或變更者負賠償責任**。

開放館聯/開放文化館藏專區

CC授權專文知識庫

<https://tw.creativecommons.net/OpenGlam-essay/>

OpenGLAM CC授權問答集-著作權

<https://tw.creativecommons.net/OpenGlam-copyright/>

OpenGLAM CC授權問答集-第三方素材

<https://tw.creativecommons.net/OpenGlam-3rd-party/>

OpenGLAM CC授權問答集-CC授權

<https://tw.creativecommons.net/openglam/>

CC Taiwan 授權討論室

<https://groups.google.com/forum/#!forum/cctw-discussion>